

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X Index No.:
HENLY GONZALEZ

Plaintiff,

SUMMONS

-against-

Plaintiff designates NEW YORK
County as the place of trial.

CITY OF NEW YORK, POLICE OFFICER JESSALYN
CAPO (SH# 7097), POLICE OFFICERS JOHN/JANE
DOES.

The basis of venue is:
Incident Location

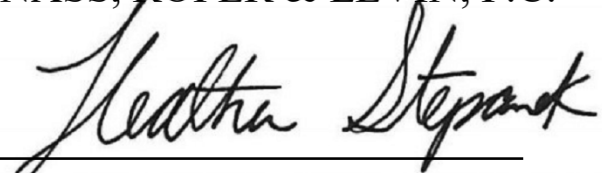
Defendants.

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
February 6, 2019

NASS, ROPER & LEVIN, P.C.


By: HEATHER STEPANEK, ESQ.
Attorneys for Plaintiff
266 W 37th Street., Ste 801
New York, NY 10018
718-775-3246

Defendants' Addresses:

THE CITY OF NEW YORK
New York City Law Department
100 Church Street
New York, New York 10007

POLICE OFFICER JESSALYN CAPO (SH# 7097)
1 Police Plaza,
New York, NY 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
HENLY GONZALEZ

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER JESSALYN CAPO
(SH# 7097), POLICE OFFICERS JOHN/JANE DOES.

Defendants.
-----X

**VERIFIED
COMPLAINT**

Index:

**PLAINTIFF DEMANDS
TRIAL BY JURY ON
ALL ISSUES**

Plaintiff, by his attorneys, NASS, ROPER & LEVIN, P.C., complaining of the
Defendants, respectfully alleges, upon information and belief, as follows:

PARTIES

1. That at all times hereinafter mentioned, Plaintiff HENLY GONZALEZ
("Gonzalez" or "Plaintiff") was and is a resident of the City, and State, of New York.
2. That at all times hereinafter mentioned, defendants THE CITY OF NEW YORK
("the CITY") was and still is a municipality organized and existing under and by virtue of the
laws of the State of New York, which operates the New York City Police Department and as
such is the public employer of the Defendant officers herein.
3. POLICE OFFICER(S) JOHN/JANE DOE(S) and POLICE OFFICER
JESSALYN CAPO (SH# 7097) (collectively "Officer Defendants") are New York City police
officers, and at all relevant times hereto, acted in that capacity as agents, servants, and/or
employees of the CITY and within the scope of their employment, responsible for their conduct
as *respondeat superior*, except for the causes of action pursuant to 42 U.S.C. § 1983.
4. At all relevant times hereto, Defendants were acting under the color of state and
local law. Defendants are sued in their individual and official capacities.

FACTUAL ALLEGATIONS

5. On November 9, 2017 Plaintiff Gonzalez was in the vicinity of Nagle Ave and Academy Street in the County of New York.

6. Without requisite reason, suspicion or cause, Defendant Officers seized Gonzalez, and dealt continuous blows and pressure to his body, including to his foot and ankle, while he was subdued on the ground.

7. Gonzalez was not resisting and was subdued on the ground when the Defendant Officers were striking and pressing on him.

8. Other Defendant Officers were present while he was being hit and took no steps to attempt to stop the other Defendant Officers.

9. As a result of the Defendant Officers' assault, Gonzalez sustained a broken ankle and foot, among other injuries.

10. Gonzalez was arrested by Defendant Officers and charged in criminal court based on false information provided by Defendant Officers.

11. While in custody of the NYPD Gonzalez asked Defendant Officers for medical attention for wounds he sustained by the officers during his arrest but Defendant Officers refused his request, which caused unreasonable delay in medical treatment.

12. On February 13, 2018 all charges that arose from Gonzalez's arrest on November 9, 2017 were dismissed on motion from the District Attorney.

13. That by reason of the foregoing, Plaintiff suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

14. Plaintiff in furtherance of the stated cause of action timely filed a Notice of Claim against the CITY, in compliance with the Municipal Law Section 50. The Notice of Claim was filed on or around January 23, 2018 and was issued a claim number, 2018PI002176.

15. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the CITY has failed to pay or adjust the claim.

16. That pursuant to GML 50-h a "50-h" hearing was held Lex Reporting at 160 Broadway, 14th floor, New York, NY 10038 on June 27, 2018.

17. This action has been commenced within one (1) year and ninety (90) days after happening of the events, upon which these claims arise.

FIRST CAUSE OF ACTION
FALSE ARREST (Pursuant to §1983 and New York State Law)

18. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

19. That Officer Defendants lacked probable cause or other legal cause to seize and arrest Plaintiff.

20. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of Plaintiff's rights, arrested Plaintiff, in violation of his rights pursuant to the U.S. and New York Constitutions.

SECOND CAUSE OF ACTION
MALICIOUS PROSECUTION (Pursuant to §1983 and New York State Law)

21. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

22. That Defendants, with malicious intent, arrested Plaintiff and initiated a criminal proceeding despite the knowledge that Plaintiff had committed no crime.

23. That there was no probable cause for the criminal proceeding.

24. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of Plaintiff's rights, deprived Plaintiff of his liberty when they maliciously prosecuted him and subjected him to an unlawful, illegal and excessive detention, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

THIRD CAUSE OF ACTION
EXCESSIVE FORCE (Pursuant to §1983 and New York State Law)

25. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

26. Defendants had no legal cause or reason to use excessive force in effectuating Plaintiff's arrest.

27. Defendants violated Plaintiff's Fourth, Eighth, and Fourteenth Amendment right to be free from unreasonable seizures and cruel and unusual punishment when they used excessive force against him.

28. That at the time of the arrest, Plaintiff did not pose a threat to the safety of the officers.

29. That Plaintiff was not actively resisting arrest or attempting to evade arrest.

30. That Plaintiff suffered serious permanent physical injuries from Defendants' use of excessive force.

31. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

32. Upon information and belief, the attack on Plaintiff by Officer Defendants, was sadistic in nature and the cause of serious permanent physical injuries upon Plaintiff.

33. By reason of Defendants' acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of Plaintiff's rights, subjected Plaintiff to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth, Eighth, and Fourteenth Amendments of the United States Constitution.

FOURTH CAUSE OF ACTION
FAILURE TO INTERVENE Pursuant to §1983 and New York State Law

34. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

35. Defendants are liable for preventable harm to Plaintiff because they knew excessive force was being used; they knew a Constitutional violation had been committed through the use of that force; and Defendants had a reasonable opportunity to intervene and prevent the harm from occurring and failed to do so.

FIFTH CAUSE OF ACTION
FAILURE TO PROVIDE MEDICAL TREATMENT
(Pursuant to §1983 and New York State Law)

36. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

37. Defendants owed a duty of care to Gonzalez to provide him with access to immediate medical treatment while he was in the custody and care of Defendants after he was injured.

38. Under the same or similar circumstances, a reasonable, prudent and careful person should have anticipated that injury to Gonzalez or to those in a like situation would probably result from the failure to provide access to immediate medical treatment.

39. Because of the negligent and grossly negligent delay in adequate medical treatment Gonzalez suffered additional needless pain and his injuries were exacerbated beyond what they would have been had he received timely adequate medical treatment.

40. Upon information and belief, Defendants' denial of timely adequate medical treatment for Gonzalez was sadistic in nature and the cause of serious permanent physical injuries upon Plaintiff.

41. That Defendants had no good-faith belief that their use of force or denial of medical care was used to maintain or restore discipline against Plaintiff, but maliciously intended to cause grievous bodily injury to him.

42. That Defendants violated Plaintiff's Eighth Amendment right to be free from cruel and unusual punishments and Fourteenth Amendment to due process.

SIXTH CAUSE OF ACTION
MUNICIPAL LIABILITY PURSUANT TO § 1983

43. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

44. That upon information and belief, in 2017, defendant CITY had a policy or routine practice of effectuating arrests seizures and arrests without probable cause, using excessive force when effectuating arrests, commencing criminal proceedings without probable cause and denying medical attention to arrestees.

45. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

46. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

47. That the above described policies and customs demonstrate a deliberate indifference and gross and wanton disregard on the part of the policymakers of defendant CITY to the constitutional rights of arrestees including Gonzalez and were the cause of the violations of Gonzalez's rights alleged herein.

SEVENTH CAUSE OF ACTION
NEGLIGENT HIRING & TRAINING

48. Plaintiff incorporates herein by reference the allegations set forth in the preceding paragraphs.

49. Upon information and belief, the CITY did not exercise reasonable care and diligence in the selection, engagement, employment and training of its servants, agents and/or employees, including Defendant Officers as to cause injuries to Gonzalez.

50. Upon information and belief, the CITY, had prior knowledge of the inappropriate, unlawful, and improper conduct of servants, agents and/or employees including Defendant Officers, and continued to employ them and allowed them to be in contact with inmates and in control of their safety.

51. By reason of the foregoing, Gonzalez, demands judgment for negligent hiring and retention against the City, in a sum exceeding the jurisdictional limits of all the lower courts.

EIGHTH CAUSE OF ACTION
ASSAULT and BATTERY

52. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

53. Defendant Officers caused harmful bodily contact to Plaintiff.

54. Defendant Officers, in a hostile manner voluntarily caused Plaintiff's injuries including, but not limited to, a fractured ankle.

55. Defendant Officers contact with Plaintiff constituted a battery in violation of the laws of the State of New York.

NINTH CAUSE OF ACTION
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

56. Plaintiff incorporates herein by reference the allegations set forth in the proceeding paragraphs.

57. That as a result of the aforementioned extreme and outrageous conduct intentionally inflicted by Defendant Officers, employees of the New York City Police Department, and CITY, Plaintiff suffered severe emotional and/or mental distress, including but not limited to emotional overlay, depression, stress, anxiety, humiliation, embarrassment and tension.

58. That as a result of the foregoing intentional, extreme and outrageous acts of the Defendants, Plaintiff, suffered severe emotional and/or mental distress, all of which may be permanent in nature, and that as a result of the foregoing, the Plaintiff, has sustained damages, which exceed the jurisdictional limit of this Court.

TENTH CAUSE OF ACTION
NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

59. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

60. As a result of the aforementioned extreme and outrageous conduct that upon information and belief was negligently inflicted by Defendants, Gonzalez suffered severe emotional and/or mental distress, including but not limited to emotional overlay, depression, stress, anxiety, humiliation, embarrassment and tension, serious permanent personal injuries of mind as well as special damages and loss and/or diminution in his enjoyment of life, and physical injuries, all of which are permanent in nature.

JURY DEMAND

61. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

CPLR SECTION 1602 STATEMENT

62. That this action falls within one or more of the exceptions set forth in the C.P.L.R. §1602.

1. CPLR Section 1602, Subdivision 7, relating to “the defendants’ having acted with reckless disregard for the safety of others”.

2. CPLR Section 1602, Subdivision 11, relating to “the defendants’ having acted knowingly or intentionally and in concert to cause the act or failures”.

CONCLUSION

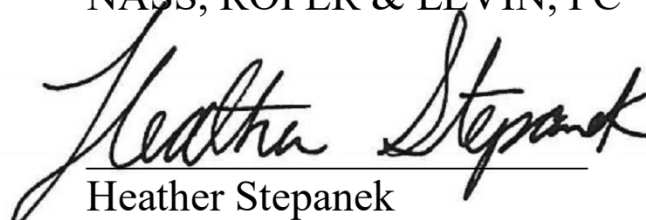
WHEREFORE, Plaintiff, HENLY GONZALEZ, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts, punitive

damages against defendants in an amount exceeding the jurisdictional limits of all lower Courts, reasonable attorneys' fee and the costs and disbursements of this action, and any such other and further relief as the Court may deem appropriate.

Dated: New York, NY
February 6, 2019

Respectfully submitted,

NASS, ROPER & LEVIN, PC

A handwritten signature in black ink, appearing to read "Heather Stepanek", written over a horizontal line.

Heather Stepanek
266 W 37th Street, Suite 801
New York, New York 10018
(718) 775-3246

ATTORNEY'S VERIFICATION

HEATHER STEPANEK, ESQ., an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney and member of NASS, ROPER & LEVIN P.C., attorneys for Plaintiff, HENLY GONZALEZ. I have read the annexed VERIFIED COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
February 6, 2019


HEATHER STEPANEK

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

HENLY GONZALEZ

Plaintiff,

– against –

CITY OF NEW YORK, ET AL.

Defendants.

SUMMONS & VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed documents are not frivolous.

Signature: _____


Heather Stepanek, Esq.

NASS, ROPER & LEVIN, PC
Attorneys for Plaintiff
HENLY GONZALEZ
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***Not for service of papers.**